

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TROYCE SPEARS JR.,

Petitioner

VS.

LATOIA WALKER,

Respondent

) Case Number: FDV-22-816492

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE IN HEALTHCARE AND HEALTH INSURANCE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Troyce Spears Jr. (Father) and Respondent Latoia Walker (Mother).
- 2) The share one minor child: Josiah, age 6.
- 3) On 5/28/26, Mother filed an ex parte Request for Order seeking modification of the current custody and visitation stipulation and order.
- 4) On 5/28/26, Mother's request for emergency relief was denied pending hearing set for 7/2/26.
- 5) There is no Proof of Service on indicating that Father was noticed of the 7/2/26 hearing date.
- 6) Father did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that Mother's 5/28/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued to Monday, 7/27/26 at 9 AM in Dept. 403** for lack of service.
- 3) At least 16 Court days prior to the next hearing date, Mother shall file and serve on Father the (a) 5/28/26 Request for Order and 5/28/26 Temporary Emergency (Ex Parte) Order, (b) Continuance

1 Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized
2 by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail to Father the (a)
3 5/28/26 Request for Order and 5/28/26 Temporary Emergency (Ex Parte) Order, (b) Continuance
4 Order, and (c) Tentative Ruling Instructions, and then Mother shall file form FL-335 (Proof of
5 Service) with the Court confirming service was effectuated).

6 4) At least 9 Court days prior to the next hearing date, Father may file a Responsive Declaration.

7 5) At least 5 Court days prior to the next hearing date, Mother may file and serve a Reply
8 Declaration.

9 6) The Court will prepare the Findings and Order After Hearing.
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29